DESIGN PATENT INFORMATION DOCUMENT

LEXTRIA RESEARCH

STEPS FOLLOWED BY LEXTRIA RESEARCH TO DRAFT AND FILE AN APPLICATION

STEP 1

Obtain a checklist of required documents.

Gather representation sheets and necessary forms.

STEP 2

Prepare a representation sheet including seven views provided by the applicant.

STEP 3

Fill out and submit **Form-1** for the design patent application along with **Form-21** (Power of Authority) and **Form-24** for startups or small entities.

STEP 4

Submit the design patent application along with the required fees and receive the acknowledgment receipt and application number.

STEP 5

The Patent Office reviews the application for novelty and uniqueness, and any objections or clarification requests must be addressed accordingly.

STEP 6

Once approved, the design patent is published in the official journal, and if no opposition is raised within the given time frame, the patent is granted and a certificate is issued.

*Details mentioned here are for illustration purpose only

DESIGN PATENT CYCLE - EXEMPLARY SCENARIO:

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Note: Entire process might take about 6 months on an average

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SOME Keywords

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APPLICANT	INVENTOR
The applicant may be a legal person or a natural person filing for a design	There is no concept of INVENTOR in a design.
REPRESENTATION SHEET	**DESIGN CLASS**
Differnt view of the product to be protected is represented in a representation sheet, preferably images or line/solid CAD images	the applicant files a Complete Design Application, which includes: Seven standard views (Front, Back, Left, Right, Top, Bottom, Perspective) and a Description focusing on the aesthetic elements (shape, pattern, ornamentation). Claim defining the visual uniqueness of the design.
First Examination Report (FER)	**HEARING**
The FER in a Design Patent is the first official communication from the Design Office. It contains formal objections related to novelty, distinctiveness, or classification of the design. The applicant must respond within 6 months, either clarifying or amending the application	A hearing in a design patent is conducted if the examiner raises objections regarding novelty, distinctiveness, or classification. The applicant can present oral arguments, provide additional clarifications, or amend the design description.

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SOME FAQs

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Sl. No	QN	ANS
1	**How is a design patent different from a utility patent?**	A design patent protects the **ornamental appearance**, while a utility patent protects **functional aspects**.
2	**Can a design patent protect colors or textures?**	No, a design patent covers only **visual shape and structure**, not colors or materials.
3	**What if I need protection in multiple countries?**	You can file under the **Hague Agreement** for international design protection
4	**What happens if someone copies my design?**	You can enforce your design patent through **legal actions, cease & desist letters, and infringement lawsuits**.

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Quotation

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Sl. No	Particulars	Cost (Govt Fee + Prof Fee + Misc.)
1	Design search with written opinion (Optional)	10,000/-
2	Design search with oral opinion, Representation Sheet preparation, drafting, filing & Response to Examination Report (FER) (If objections are raised by the Design Office) along with Attending hearing and filing written submission (If required)	4000+ 15,000 + 1,000 = 20,000/-
GST will be charged separately for payment		

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